

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 2, 2026 TIME: 8:30 A.M.

Although petitioner is self-represented, such a party is to be treated like any other party and is entitled to the same, but no greater, consideration than other litigants and attorneys. (*Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944.)

The Court denies the motion for several reasons. First, plaintiff fails to provide any legal basis for his motion, as required by Code of Civil Procedure section 1010, and failed to serve it on defendant as required by Cal. Rules of Court, rule 3.1300(a). Second, assuming plaintiff brings his motion subject to Code of Civil Procedure section 473(b), he fails to establish any mistake, inadvertence, surprise or neglect warranting discretionary relief. Finally, plaintiff alludes to service or mail issues (not accepting mail at his address, certified letter sent in the name of John Doe but not his real name) but it is not clear what basis he has for vacating the dismissal. Therefore, the Court denies his motion.

No. 24CV03044

SANCHEZ v. MIRON

DEFENDANT'S MOTION TO COMPEL ANSWERS AT THE DEPOSITION OF PLAINTIFF

The motion to compel is denied, as discussed below.

I. COMPLAINT AND MOTION

This is an automobile accident case. Adolfo Sanchez ("Sanchez" or "plaintiff") filed this complaint against the Chrisp Company and Paul Miron. The complaint alleges that Miron was driving while in the course and scope of his employment with the Chrisp Company when he failed to yield the right of way to Sanchez, who was on a bike. The two collided and Sanchez asserts he sustained injuries. The complaint alleges negligence and negligence per se.

Defendants bring this motion to compel Sanchez to answer three questions he did not answer at his deposition:

- (1) "[W]ho, if anyone suggested that you go to Aloha Sports Chiropractic?"
- (2) "[W]ho suggested that you go to Synergex Medical with Dr. Vargas for pain management?"
- (3) "[W]ho suggested that you go to see Dr. Nathaniel Grunsky?"

After these questions were posed, plaintiff's counsel instructed him not to answer based upon attorney-client communication. Defendants argue that whether an attorney referred a client to a treating physician does not constitute a protected confidential communication and is

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relevant, citing *Qaadir v. Figueroa* (2021) 67 Cal.App. 790. In opposition, plaintiff argues that a medical referral provided by the plaintiff's attorney concerning whether he should seek treatment for his injuries is encompassed with the attorney-client privilege and that defendants' reliance upon *Qaadir* is misplaced. (Opp. at p. 4, 7.)

II. LEGAL STANDARDS AND DISCUSSION

Code of Civil Procedure section 2025.480, subdivision (a) states that if a deponent fails to answer a question at deposition, the examining party may move to compel the deponent to answer.

At issue here are three questions which plaintiff's counsel instructed him to not answer based upon attorney-client communication (privilege). Evidence Code section 954 provides that the client has the privilege of refusing to disclose, and to prevent another from disclosing, a confidential communication between client and lawyer. Evidence Code section 952 defines confidential communication as "information transmitted between a client and his or her lawyer in the course of that relationship and in confidence by a means which, so far as the client is aware, discloses the information to no third persons other than those who are present to further the interest of the client in the consultation or those to whom disclosure is reasonably necessary for the transmission of the information or the accomplishment of the purpose for which the lawyer is consulted, and includes a legal opinion formed and the advice given by the lawyer in the course of that relationship."

"The attorney-client privilege is meant to promote a full and free relationship between the attorney and the client by safeguarding disclosures and advice. Where there is doubt about its application, we will construe it liberally. [Citation.]" (*Kroll & Tract v. Paris & Paris* (1999) 72 Cal.App.4th 1537, 1545.)

"In general, when a party asserts the attorney-client privilege, that party has the burden of showing the preliminary facts necessary to support the privilege. [Citation.] The necessary preliminary facts include the existence of the attorney-client relationship at the time the confidential communication was made. [Citation.] After this burden is met, or where there is no dispute concerning the preliminary facts, the burden shifts to the party opposing the privilege to show either the claimed privilege does not apply, an exception exists, or there has been an express or implied waiver. [Citation.]" (*Venture Law Group v. Superior Court* (2004) 118 Cal. App.4th 96, 102.) Here, there is no doubt the requested communication was one that was made between client and attorney.

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With respect to the holding in *Qaddir*, the Court does not find it persuasive for this motion. *Qaddir* did not concern deposition testimony, but rather the conduct of the trial court related to the exclusion of certain damages evidence. The defendants contended, in part, that the trial court erred by excluding testimony that Qaddir's attorney referred him to medical providers who asserted liens. The Second District found that the referral evidence was relevant to the question of the reasonable value of the lien-physician's medical care. (*Qaddir, supra*, 67 Cal.App. 5th at p. 808.) During opening statement, defense counsel told the jury, without objection, that Qaddir was told to see a certain doctor by his attorney. Later, defense counsel asked Qaddir's billing expert and Qaddir whether his attorney had referred him to the lien-physicians; plaintiff's counsel objected based upon relevancy and that objection was sustained. (*Id.*) The Second District found it was an error for the trial court to not ascertain the relevance of defense counsel's question by either granting a sidebar conference or allowing "defense counsel at a recess to proffers its relevance." (*Id.* at p. 808.) Nevertheless, the Second District found defendants had not demonstrated prejudice from this error. The *Qaddir* holding was focused on relevancy, not the attorney-client privilege. Here, plaintiff asserted the privilege. Therefore, the *Qaddir* holding does not compel disclosure.

Defendants cited *People v. Lines* (1975) 13 Cal.3d 500, n. 17 and *City and County of San Francisco v. Superior Court* (1951) 37 Cal.2d 227, 237-238. The footnote in *Lines*, as pointed out by plaintiff, concerned the results of a physical examination; the California Supreme Court noted that the results would be protected by the physician-patient privilege not the attorney-client privilege. Here, the issue is the potential referral to a treater by the attorney, not the results.

In *City and County of San Francisco*, the petitioners sought a writ of mandamus to compel a physician to answer questions about the plaintiff's medical condition who asserted the information was privileged. The physician testified that there was no doctor-patient relationship between himself and the plaintiff and that he did not treat the plaintiff and he examined him with the "sole purpose ... to aid Hession's [plaintiff] attorneys in the preparation for a lawsuit ... and that he was an agent of the attorneys." (*San Francisco, supra*, 37 Cal.2d at p. 213.) "Doctor Catton asserted a privilege personal to himself, a privilege not to testify to knowledge and opinions that were the result of his special learning without payment of more than the ordinary witness fee." (*San Francisco, supra*, 37 Cal.2d at p. 233-234.) The California Supreme Court found that although Dr. Catton had no privilege of his own and there was no physician-patient privilege, he "wan an intermediate agent for communication between Hession and his attorneys such that Hession may therefore invoke the attorney client privilege... ." (*Id.* at p. 234.)

The Court does not find that either of these cases support compelling plaintiff to answer the three specific questions at issue in this motion after he invoked the attorney-client privilege nor have there been any claims plaintiff waived the privilege.